THE WHITE HOUSE
WASHINGTON

February 24, 1927.

Memorandum:

Please treat the attached Executive Order as confidential.

Released Nov. 18, 1935.



EXECUTIVE ORDER

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY UPON THE NEW YORK STOCK EXCHANGE.

Chief Clerk and Administrative Assistant

FEB 24 1927

Department of State



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By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the Amendments to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1919, and prior fiscal years on account of war expenses and for other purposes", approved March 28th, 1918, and the amendment to such act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30th, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4th, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell upon the New York Stock Exchange, at such time as to him or to his authorized agent may seem advisable, without public or other advertisement, Four thousand Two (4002) shares Common stock of the Wabash Railway Company, incorporated under the laws of the State of Indiana, of One Hundred Dollars ($100.00) par value, heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of Deutsche Bank of Berlin

My reasons for the foregoing determination and order are:

First: That, considering the earning capacity and immediate prospects of the Wabash Railway Company, the current prices at which the common shares are selling is believed to represent their fair market worth. No dividends have been paid on the common shares since seizure by the Alien Property Custodian.

Second: That the sale of said stock at current prices will result in realization in tangible form of an increase of more than 600 per cent in principal by virtue of the appreciation in the market value of the stock since seizure, and the investment of the proceeds in Liberty Loan Bonds or Certificates of Indebtedness of the United States Government would insure a return on the fund.

Third: That the Deutsche Bank, Berlin, Germany, for whose account said stock is held has requested the Alien Property Custodian to negotiate the sale.

Fourth: That, as the stock is listed on the New York Stock Exchange and has an active and established market, a public or other advertisement of the sale of the said stock or attempted sale at auction would be a useless formality involving unnecessary expense and would serve no useful purpose.

THE WHITE HOUSE,

February 24, 1927.

(No. 4594-A)